

The court informed Defendant that Plaintiff had filed a motion for default judgment transferring title pursuant to a purchase and sale agreement, that the hearing was set for October 2, 2026, and that Defendant's opposition papers were due to be filed and served September 18, 2026.

6. 9:00 AM CASE NUMBER: C25-03645
CASE NAME: ROLNARD CLEARY VS. GLORIA CARBALLO
***HEARING ON MOTION IN RE: LEAVE TO FILE SECOND AMENDED COMPLAINT**
FILED BY: CLEARY, ROLNARD S
TENTATIVE RULING:

The unopposed motion to file a Second Amended Complaint is **granted**. Plaintiff shall separately file the Second Amended Complaint within 15 days of this August 14, 2026 order.

7. 9:00 AM CASE NUMBER: C26-00103
CASE NAME: RODRIGO GARCIA VS. FIGUEROA TANK LINES INC.,
HEARING ON DEMURRER TO: COMPLAINT - CON'TD PER TR OF 6/26/26
FILED BY: SAMSARA, INC.,
TENTATIVE RULING:

Defendant Samsara Inc.'s Demurrer to Plaintiff Rodrigo Garcia's Complaint, First, Third and Fourth Cause of Action, is **sustained with leave to amend**. Defendant shall prepare the order and file and serve notice of entry of order. Plaintiff shall have 30 days from service of notice of entry of order in which to file an amended complaint.

Background and Allegations of the Complaint

Rodrigo Garcia was hired by Figueroa Tank Lines Inc. as a fuel truck driver on or about December 1, 2024. (Plf.'s January 9, 2026 Complaint ¶ 8.) His duties included operating fuel tanker trucks, performing pre- and post-trip safety inspections, loading and unloading fuel, complying with DOT regulations, and ensuring the safe transport of hazardous materials. (Id. ¶ 9.) Because he transported highly flammable and dangerous materials, his position carried heightened safety obligations, and he was trained and understood that drivers have an independent duty to refuse unsafe equipment, report mechanical defects, and decline to operate vehicles posing a risk to public safety. (Id. ¶ 10.)

Beginning within the first several months of his employment, Plaintiff identified and reported recurring safety issues with Figueroa's fleet to management, including owner Marco Figueroa and his son Kevin Figueroa. (Compl. ¶ 11.) These included tires with visible damage or slash marks, inadequate tire pressure and air leaks, missing antifreeze and overheating risks, mechanical defects rendering trucks unsafe for operation, and failure to timely repair trucks placed out of service. (Ibid.) Management dismissed Plaintiff's concerns, accused him of exaggerating safety risks, pressured him to continue driving, and subjected him to verbal abuse and ridicule, including telling him to "suck it up." (Id. ¶ 12.) Plaintiff reasonably believed that operating unsafe fuel tankers violated DOT regulations, California workplace safety laws, and fundamental public safety principles. (Id. ¶ 13.)

Plaintiff's assigned often required 12-14 hour shifts, leaving insufficient time for legally compliant meal and rest breaks. (Compl. ¶ 14.) He repeatedly complained to management that the volume of